

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:  
Date Purchased:

-----X  
CRAIG PESTONE,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT and POM G. ZAKOSCIELNY,

Defendant(s).

**SUMMONS**

Plaintiff designates  
BRONX County as the  
place of trial.

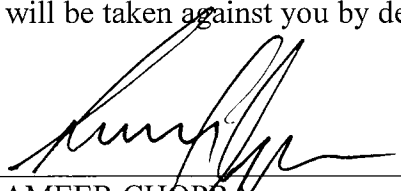
The basis of venue is:  
location of occurrence  
951 Northbound, New  
England Thruway near Co-  
Op City Blvd Exit, Bronx,  
New York

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**To the above named Defendant(s):**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York  
April 26, 2018

  
\_\_\_\_\_  
SAMEER CHOPRA  
**CHOPRA & NOCERINO, LLP**  
Attorneys for Plaintiff  
CRAIG PESTONE  
100 Quentin Roosevelt Blvd, Unit 107  
Garden City, New York 11530

Defendant's Address

**THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT and POM G. ZAKOSCIELNY**  
100 Church Street  
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

**VERIFIED  
COMPLAINT**

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CRAIG PESTONE,

Index No.:  
Date Purchased:

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT and POM G. ZAKOSCIELNY,

Defendant(s).

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The plaintiff, **CRAIG PESTONE**, by his attorneys, CHOPRA & NOCERINO, LLP,  
complaining of the defendants herein, respectfully shows to this Court and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION**

1. That the plaintiff, **CRAIG PESTONE**, is a resident of the Connecticut.
2. That at all of the times hereinafter mentioned, and upon information and belief,  
the defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly organized  
and existing under and by virtue of the Laws of the City and State of New York.
3. That at all of the times hereinafter mentioned, and upon information and belief,  
the defendant, **NEW YORK CITY POLICE DEPARTMENT**, was a public agency duly  
constituted and existing under and by virtue of the Laws of the City and State of New York.
4. That on or about January 16, 2018, a Notice of Claim was served on the  
defendants, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE  
DEPARTMENT**, prior to the commencement of this action.

5. That on or about January 16, 2018, the plaintiff herein duly presented in writing to the defendants, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, the claims for damages herein set forth and upon which this action is, in part, founded and that said claim was presented for adjustment.

6. That more than 30 days have elapsed since the said Notice of Claim, dated January 9, 2018, was served upon the defendant and the defendants, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, has failed and refused to make payment or make an adjustment of any claims herein set forth.

7. That the plaintiff has duly complied with all of the conditions precedent to the commencement of this action as required by New York General Municipal Law §50(h).

8. That this action was commenced within one (1) year after the accrual of the causes of action herein.

9. Defendant **POM G. ZAKOSCIELNY** was a police officer/detective employed by the New York City Police Department.

10. Plaintiff sues defendant **POM G. ZAKOSCIELNY** in both his individual and official capacity.

11. That at all times material to this Complaint, the defendant, **POM G. ZAKOSCIELNY** acted within the scope of his duties as an employee, agent and official of the defendants, **CITY OF NEW YORK** and the **NEW YORK CITY POLICE DEPARTMENT**.

12. That at all times hereinafter mentioned, the defendants, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, employed various persons

including the police officers, law enforcement agents and personnel mentioned in this Complaint.

13. That on or about October 31, 2017, the plaintiff, **CRAIG PESTONE**, was injured by the defendants, by their agents, servants and/or employees.

14. That the aforesaid incident was without probable cause or any justification.

15. That as a result of the defendants' negligence, the plaintiff suffered and sustained physical injury and bodily harm, plaintiff's health was impaired, plaintiff suffered severe emotional distress, panic attacks, plaintiff's reputation and character were injured and plaintiff suffered a loss of income.

16. That by reason of the foregoing, the plaintiff, **CRAIG PESTONE**, has been unable to attend to his usual occupation and/or school in the manner required.

17. That one or more of the exceptions of §1602 of the Civil Practice Law and Rules do apply to the within action.

18. That as a result of the foregoing, the plaintiff, **CRAIG PESTONE**, sustained damages in excess of the jurisdictional amounts of the lower court.

**AS AND FOR A SECOND CAUSE OF ACTION**

19. Plaintiffs repeat and realleges each and every allegation contained in paragraphs 1 through 18 inclusive, with the same force and effect as though more fully set forth at length herein.

20. That at the times of the above-stated incident and at all times hereinafter mentioned, plaintiff, **CRAIG PESTONE**, was unlawfully assaulted and battered, humiliated and held at gun point with threat of immediate violence.

21. That at the time of said incident, assault and battery and humiliation the defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by the defendants **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**.

22. That by reason of and in consequence of said assault and battery and humiliation on the part of the defendants and their agents, servants and/or employees, the plaintiff, **CRAIG PESTONE**, sustained serious bodily injuries with accompanying conscious pain and suffering and was rendered sick, sore, lame, disabled, and bruised, and sustained severe mental distress, emotional distress, anxiety, that some of the said injuries may be permanent; that he was physically and verbally assaulted and battered at the time of his attack, and that he was unlawfully deprived of his liberty, rights and freedom.

23. That by reason of the foregoing, the plaintiff, **CRAIG PESTONE**, has been unable to attend to his usual occupation in the manner required.

24. That one or more of the exceptions of §1602 of the Civil Practice Law and Rules do apply to the within action.

25. That as a result of the foregoing, the plaintiff, **CRAIG PESTONE**, sustained damages in excess of the jurisdictional amounts of the lower court.

**AS AND FOR A THIRD CAUSE OF ACTION**

26. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 25 inclusive, with the same force and effect as though more fully set forth at length herein.

27. That as a result of the defendants' concerted and unlawful use of excessive force

and assault and battery and humiliation of plaintiff, **CRAIG PESTONE**, the plaintiff was deprived of his liberty without due process of law in violation of his rights under the Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of his statutory rights under 42 U.S.C. §1983; and the plaintiff was further deprived of his right to due process under the Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of his statutory rights under 42 U.S.C. §1983 by the defendant's use of excessive physical force.

28. That the defendants' violations of plaintiff's constitutional and civil rights and concerted, unlawful use of excessive force, assault and battery and humiliation of plaintiff, **CRAIG PESTONE**, was perpetrated by the defendants pursuant to and under color of law.

29. That the aforementioned acts, omissions and conduct of the defendants, set forth above in paragraphs 21 through 22 inclusive, resulted in the plaintiff suffering physical injury, impairment of health, severe emotional distress, impairment of reputation and character, loss of income, deprivations and violations of her Fourth, Fifth and Fourteenth Amendment rights as well as rights secured and guaranteed by 42 U.S.C. §1983 and the laws of the United States.

30. That by reason of the foregoing, the plaintiff, **CRAIG PESTONE**, has been unable to attend to his usual occupation in the manner required.

31. That one or more of the exceptions of §1602 of the Civil Practice Law and Rules do apply to the within action.

32. That as a result of the foregoing, the plaintiff, **CRAIG PESTONE**, sustained damages in excess of the jurisdictional amounts of the lower court.

**AS AND FOR A FOURTH CAUSE OF ACTION**

33. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 32 inclusive, with the same force and effect as though more fully set forth at length herein.

34. That the defendants were negligent, reckless and failed to use reasonable care during the aforesaid incident.

35. That as a result of the negligence of the defendants, the plaintiff, **CRAIG PESTONE**, sustained serious bodily injuries and accompanying conscious pain and suffering, and was rendered sick, sore, lame, disabled and bruised, suffered emotional distress and mental anguish and was caused to undergo medical care and treatment and incur medical expenses and other costs.

36. That by reason of the foregoing, the plaintiff, **CRAIG PESTONE**, has been unable to attend to his usual occupation and/or school in the manner required.

37. That one or more of the exceptions of §1602 of the Civil Practice Law and Rules do apply to the within action.

38. That as a result of the foregoing, the plaintiff, **CRAIG PESTONE**, sustained damages in excess of the jurisdictional amounts of the lower court.

**AS AND FOR A FIFTH CAUSE OF ACTION**

39. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 38 inclusive, with the same force and effect as though more fully set forth at length herein.

40. That at the time of said assault, the agent, servant and/or employee was acting in the course and general scope of his employment in pursuance of the authority given him by the defendant **NEW YORK CITY POLICE DEPARTMENT**.

41. That upon information and belief, the defendant, **NEW YORK CITY POLICE DEPARTMENT** herein knew, or should have known, that the agent, servant and/or employee was unfit for the employment for which he was hired.

42. That by hiring and retaining the aforesaid agent, servant and/or employee, the defendant **POM G. ZAKOSCIELNY** herein created and propitiated and situation where it was likely that said agent, servant and/or employee would, as a result of his history, character, temperament and propensity, threaten, assault and strike others.

43. That the defendant, **NEW YORK CITY POLICE DEPARTMENT** knew or should have known in the exercise of due and reasonable care that the aforesaid agent, servant and/or employee was vicious and potentially dangerous.

44. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, was negligent in the hiring of defendant **POM G. ZAKOSCIELNY** and supervision of the aforesaid agent, servant and/or employee.

45. That as a result of the negligence of the defendants, the plaintiff, **CRAIG PESTONE**, sustained serious bodily injuries and accompanying conscious pain and suffering, and was rendered sick, sore, lame, disabled and bruised, suffered emotional distress and mental anguish and was caused to undergo medical care and treatment and incur medical expenses and other costs.

46. That by reason of the foregoing, the plaintiff, **CRAIG PESTONE**, has been

unable to attend to his usual occupation in the manner required.

47. That one or more of the exceptions of §1602 of the Civil Practice Law and Rules do apply to the within action.

48. That as a result of the foregoing, the plaintiff, **CRAIG PESTONE**, sustained damages in excess of the jurisdictional amounts of the lower court.

**AS AND FOR A SIXTH CAUSE OF ACTION**

49. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 48 inclusive, with the same force and effect as though more fully set forth at length herein.

50. That on or about October 31, 2017 at approximately 4:00 p.m., while traveling on 951 New England Thruway heading in a north bound direction at or near the exit of Co-Op City Blvd, in the County of Bronx, State of New York, defendant **POM G. ZAKOSCIELNY** assaulted, battered, beat, threatened, menaced, attacked, thrashed, punched, head butted, shoved, hit, scratched, elbowed, pushed, help plaintiff at gun point, harassed and/or humiliated plaintiff, **CRAIG PESTONE**, thereby causing him to sustain severe and permanent injuries.

51. That the aforesaid conduct by defendant **POM G. ZAKOSCIELNY** was without the consent of the plaintiff, **CRAIG PESTONE**.

52. That the aforesaid conduct by defendant **POM G. ZAKOSCIELNY** was offensive in nature.

53. That the aforesaid conduct by defendant **POM G. ZAKOSCIELNY** was intentional and unreasonable and/or without cause and/or necessity.

54. That the aforesaid conduct by defendant **POM G. ZAKOSCIELNY** was with the intent of causing physical, emotional and/or psychological harm and/or injury to the plaintiff, **CRAIG PESTONE**.

55. That the aforesaid conduct by the defendant **POM G. ZAKOSCIELNY** placed the plaintiff, **CRAIG PESTONE**, in imminent apprehension of harmful contact.

56. That as a result of the aforesaid conduct, plaintiff **CRAIG PESTONE** was rendered sick, sore lame and disabled; sustained severe and painful personal injuries; sustained severe nervous shock, mental anguish, severe emotional distress and great physical pain; was confined to bed and home for a long period of time; was compelled to undergo hospital and medical aid, dental aid, treatment and attention; has suffered loss of enjoyment of life; was prevented from engaging in his usual occupation for a long period of time; and since some of his injuries are of a permanent nature, he will continue to suffer similar damages in the future.

57. That the aforesaid occurrence and resulting injuries to plaintiff **CRAIG PESTONE** was due to the willful, wanton, intentional, reckless and/or malicious conduct of the defendant, **POM G. ZAKOSCIELNY**.

58. That the aforesaid occurrence and resulting injuries to plaintiff **CRAIG PESTONE** due to the conduct of defendant **POM G. ZAKOSCIELNY** reflects utter indifference to the safety of others and specifically the safety of plaintiff **CRAIG PESTONE** on the part of defendant **POM G. ZAKOSCIELNY**.

59. That the aforesaid occurrence and resulting injuries to plaintiff **CRAIG PESTONE** due to the conduct of defendant **POM G. ZAKOSCIELNY** reflects a

conscious disregard of the safety of others and specifically the safety of plaintiff **CRAIG PESTONE** on the part of defendant **POM G. ZAKOSCIELNY**.

60. That the aforesaid occurrence and resulting injuries to plaintiff **CRAIG PESTONE** due to the conduct of defendant **POM G. ZAKOSCIELNY** reflects a reckless disregard for human life and safety and specifically the life and safety of plaintiff **CRAIG PESTONE** on the part of defendant **POM G. ZAKOSCIELNY**.

61. That by reason of the foregoing, plaintiff demands damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction herein. Plaintiff further demands punitive and exemplary damages to punish said defendant for his egregious and outrageous conduct, and to discourage others similarly situated from perpetrating like or similar acts of intentional, willful, wanton and reckless conduct; the amount of punitive and exemplary damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction herein.

**AS AND FOR A SEVENTH CAUSE OF ACTION**

62. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 61 inclusive, with the same force and effect as though more fully set forth at length herein.

63. That on or about October 31, 2017 at approximately 4:00 p.m., while traveling on 951 New England Thruway heading in a north bound direction at or near the exit of Co-Op City Blvd, in the County of Bronx, State of New York, defendant New York City officers working on behalf of the Police Department failed to stop, restrain, confine, detain, jail, imprison or arrest **POM G. ZAKOSCIELNY** for assaulting, battering, beating, threatening, menacing, attacking, thrashing, punching, head butting, shoving, hitting, scratching, elbowing and pushing plaintiff, **CRAIG PESTONE**, thereby causing him to sustain severe and permanent injuries.

64. That on or about October 31, 2017 at approximately 4:00 p.m., while traveling on 951 New England Thruway heading in a north bound direction at or near the exit of Co-Op City Blvd, in the County of Bronx, State of New York, defendant officers working on behalf of the Police Department failed to stop, prevent and/or interfere with **POM G. ZAKOSCIELNY** from assaulting, battering, beating, threatening, menacing, attacking, thrashing, punching, head butting, shoving, hitting, scratching, elbowing, removing his gun from the holster, putting plaintiff at gun point, harassing plaintiff and pushing plaintiff, **CRAIG PESTONE**, thereby causing him to sustain severe and permanent injuries.

65. That as a result of the aforesaid conduct or lack thereof, plaintiff **CRAIG PESTONE** was rendered sick, sore lame and disabled; sustained severe and painful personal injuries; sustained severe nervous shock, mental anguish, severe emotional distress and great physical pain; was confined to bed and home for a long period of time; was compelled to undergo hospital and medical aid, dental aid, treatment and attention; has suffered loss of enjoyment of life; was prevented from engaging in his usual occupation for a long period of time; and since some of his injuries are of a permanent nature, he will continue to suffer similar damages in the future.

**AS AND FOR AN EIGHT CAUSE OF ACTION**

66. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 65 inclusive, with the same force and effect as though more fully set forth at length herein.

67. On October 31, 2017, and at all times mentioned the October at approximately 4:00 p.m., while traveling on 951 New England Thruway heading in a north bound direction at or near the exit of Co-Op City Blvd, in the County of Bronx, State of New York

68. On October 31, 2017, while Plaintiff was lawfully present in the aforesaid location, he was caused to be negligently, carelessly, recklessly, intentionally, wrongfully, willfully, maliciously and with gross negligence, physically detained, assaulted, held at gun point against his will, wrongfully detained, wrongfully accused, wrongfully imprisoned/held against his will, falsely arrested and detained by defendants **CITY OF**

**NEW YORK, NEW YORK CITY POLICE DEPARTMENT and POM G. ZAKOSCIELNY**, and was caused to sustain severe and permanent injuries.

69. The aforementioned occurrence took place due to the negligence, carelessness and recklessness of the defendants, their agents, servants, employees and/or licensees, acting within the scope of their authority, within the scope of their employment and in the furtherance of their agency.

70. The aforesaid occurrence and the results thereof were due to and caused by the joint, several and concurrent negligence of the defendants and their agents, servants, employees and/or licensees in negligently, carelessly and recklessly causing, allowing and/or permitting the Plaintiff to be willfully, maliciously and with gross negligence physically detained, assaulted, wrongfully imprisoned, falsely arrested and detained.

71. No negligence on the part of the Plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

72. That by reason of the foregoing, plaintiff **CRAIG PESTONE** was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and as a result Plaintiff was and will continue to be rendered unable to perform her normal activities and duties and in consequence has sustained a loss therefrom.

73. That as a result of the foregoing, Plaintiff **CRAIG PESTONE** was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION

74. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 73 inclusive, with the same force and effect as though more fully set forth at length herein.

75. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the defendants and their agents, servants, employees and/or licensees, all of whom were acting within the scope of their authority, within the scope of and in furtherance of their employment and in furtherance of their agency.

76. The acts complained of herein constitute intentional infliction of emotional harm and distress.

77. That by reason of the foregoing, plaintiff **CRAIG PESTONE** was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, plaintiff was and will continue to be rendered unable to perform her normal activities and duties and in consequence has sustained a loss therefrom.

78. That as a result of the foregoing, Plaintiff **CRAIG PESTONE** was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A TENTH CAUSE OF ACTION**

79. Plaintiffs repeat and reallege each and every allegation contained in paragraphs 1 through 78 inclusive, with the same force and effect as though more fully set forth at length herein.

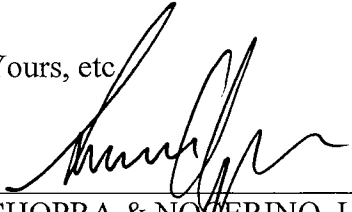
80. The acts complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society.

81. That as a result of the foregoing, Plaintiff **CRAIG PESTONE** was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**WHEREFORE**, plaintiff demands damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction herein. Plaintiff further demands punitive and exemplary damages to punish said defendant for his egregious and outrageous conduct, and to discourage others similarly situated from perpetrating like or similar acts of intentional, willful, wanton and reckless conduct; the amount of punitive and exemplary damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction herein.

Dated: Garden City, New York  
April 26, 2018

Yours, etc

  
\_\_\_\_\_  
CHOPRA & NOZERINO, LLP  
Attorneys for Plaintiff  
**CRAIG PESTONE**  
100 Quentin Roosevelt Blvd

Unit 107  
Garden City, New York 11530  
(212)868-3600

TO: THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT and POM G. ZAKOSCIELNY,  
100 Church Street  
New York, New York 10007

  
SAMEER CHOPRA

Index No.

SUPREME COURT OF THE STATE OF NEW YORK  
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**SUMMONS AND COMPLAINT**

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**CHOPRA & NOCERINO, LLP**  
Attorneys for Plaintiff(s)  
Office and Post Office Address, Telephone  
100 Quentin Roosevelt Blvd, Unit 107  
Garden City, New York 11530  
(212) 868-3600

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